

Started on Thursday, July 25, 2024, 1:18 PM
State Finished
Completed on Thursday, July 25, 2024, 1:20 PM
Time taken 2 mins 13 secs
Points 5.00/5.00
Grade 100.00 out of 100.00
Feedback You have completed this Knowledge Check.

Please proceed to the final exam by choosing the following

Next

Question 1

Correct

Under ACA Section 1557, a health plan premium sold through a state exchange may, based on an individual's age and

- ☐ a. deny benefits and services due to pre-existing conditions.
- ☐ b. limit benefits and services.
- ☒ c. charge higher premiums. **✓ Correct:** As a general rule, Section 1557 prohibits a covered entity (such as a health plan) from excluding, denying, or limiting benefits and services based on an individual's age. A health plan may, however, take actions based on age when it is a factor necessary to the normal operation of a program or to the achievement of a statutory objective of a program. For instance, the Affordable Care Act (ACA) permits health plans to consider age in setting premiums (within permissible ratios) and this does not violate Section 1557. The ACA restricts age bands in all states to a ratio no greater than 3:1.
- ☐ d. exclude primary care benefits and services.

Source: Slide – Permissible Age Distinctions

Question 2

Correct

Which Medicare programs are covered by ACA Section 1557 under the Biden Administration's Final Rule (2024)?

- ☐ a. Parts A and B (Original Medicare) only.
- ☐ b. Part D (prescription drug coverage) only.
- ☐ c. Part C (Medicare Advantage) only.
- ☒ d. Parts A, C, and D, and Part B. ✓

Correct: Federal financial assistance triggers Section 1557 coverage and compliance. Federal financial assistance for purposes of Section 1557 includes grants, property, Medicaid, and Medicare Parts A, C, and D payments and now under the Final Rule (2024). Federal financial assistance for purposes of Section 1557 also includes tax credits and cost-sharing subsidies under Title I of the ACA.

Source: Slide – Who Must Comply and Slide – Covered Entities

Question 3

Correct

Which of the following statements best describes Section 1557 of the Affordable Care Act (ACA)?

- ☒ a. Section 1557 incorporates earlier civil rights protections in regard to race, color, national origin, disability, age and sex. ✓

Correct: Section 1557 incorporates earlier civil rights protections in regard to race, color, national origin, disability, age, and sex and applies them to federally funded health programs and those administered by HHS. These laws include Title VI of the Civil Rights Act of 1964 (race, color, and national origin), Title IX of the Education Amendments Act of 1972 (sex), Section 504 of the Rehabilitation Act of 1973 (disability), and the Age Discrimination Act of 1975 (age).
- ☐ b. Section 1557 incorporates earlier civil rights protection in regard to race, color, and national origin but does not incorporate protections against discrimination based on age and disability.
- ☐ c. Section 1557 introduced completely new concepts of civil rights protections on the basis of age and disability.
- ☐ d. Section 1557 introduced completely new concepts of civil rights protections on the basis of race and sex.

Source: Slide – Building on Earlier Legislation

Question 4

Correct

As a result of violations of ACA Section 1557 nondiscrimination rules,

- ☐ a. agents and brokers may be fined, but health plans are not affected.
- ☒ b. a health plan may revoke an agent or broker's appointment with the health plan. **✓ Correct:** A health plan may decide to terminate an agent or broker's appointment with the health plans due to a violation of Section 1557 nondiscrimination rules.
- ☐ c. health plans may be fined, but their agents and brokers are not affected.
- ☐ d. an agent or broker can have their state insurance license revoked by HHS.

Source: Slide – Consequences of Violations

Question 5

Correct

ACA Section 1557 rules for disability concern

- ☐ a. policies and procedures only.
- ☒ b. policies and procedures, physical access, and communication. **✓ Correct:** Under Section 1557, covered entities (such as health plans) must take actions that include: (1) Making reasonable changes in policies, procedures, and practices where necessary to provide equal access to individuals with disabilities; (2) Ensuring newly constructed and altered facilities are physically accessible to individuals with disabilities; and (3) Providing effective communication with individuals with disabilities, including patients and their companions.
- ☐ c. physical access and communication.
- ☐ d. communication only.

Source: Slide – Reasonable Accommodations for Disabled Persons